

Irshad Ahmad v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 1 March 2023 · WRIT - C No. 7234 of 2023 · **Petition disposed; recovery withdrawn; fresh order after hearing.**

HEADNOTE

Writ against a final assessment order dated 12 August 2021, passed under the Electricity Act, 2003 in a theft case, was disposed of after the Electricity Department stated that recovery had been withdrawn and that a fresh order would be passed after hearing, following the procedure prescribed under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Irshad Ahmad filed a writ petition in the Allahabad High Court against the State of U.P. and two others, challenging the Electricity Department's final assessment order dated 12 August 2021. That order was passed under the Electricity Act, 2003 in a case of alleged theft of electricity. When the petition was taken up, counsel for the Electricity Department told the Court that the recovery had been withdrawn and that a fresh order would be passed after the petitioner was heard.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

Fresh order after withdrawal of theft-assessment recovery

HOLDING

On the Electricity Department's statement that recovery under the final assessment order dated 12 August 2021 had been withdrawn, the writ was disposed of with liberty to pass a fresh order after hearing the petitioner and after following the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG No Supply Code clause number is stated. The order also refers to the Electricity Act, 2003 without a section number.

PRINCIPLE TAGS

procedural-listing-no-construction The Division Bench did not construe any Supply Code clause or Electricity Act section. It disposed of the writ on the Department's statement that recovery under the 12 August 2021 theft assessment had been withdrawn and that a fresh order would follow the procedure prescribed by the U.P. Electricity Supply Code, 2005 after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT DATED 12 AUGUST 2021 FOR ALLEGED THEFT OF ELECTRICITY WAS LAWFUL ON MERITS

Recovery was withdrawn by the Department. A fresh order after hearing, under the Supply Code procedure, was left to be passed. ¶ 1